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Judgment Sheet

IN THE LAHORE HIGH COURT, LAHORE

JUDICIAL DEPARTMENT

Writ Petition No. 80758/2023

(Vishal Ahmad Shakir vs. Federation of Pakistan, etc.)

JUDGMENT

Dates of hearing:	08.12.2023, 13.12.2023, 20.12.2023, 22.12.2023, 19.02.2024, 28.02.2024, 06.03.2024, 05.04.2024, 09.04.2024, 03.06.2024, 05.06.2024, 10.09.2024, 25.09.2024, 04.10.2024, 18.10.2024, 01.11.2024, 29.11.2024, 14.04.2025, 16.04.2025, 18.04.2025, 25.04.2025, 29.04.2025, 13.05.2025, 28.08.2025, 29.08.2025 & 10.09.2025
Petitioner by:	M/s Mian Ali Haider and Syed Fayaz Hussain Shah, Advocates.
State by:	Mirza Nasar Baig, Additional Attorney General for Pakistan, M/s Asad Ali Bajwa, Imtiaz Elahi, Deputy Attorneys General, M/s Mohsin Raza Bhatti, M. Zain Qazi, Mr. Altaf Hussain Lashari, Assistant Attorneys General with Ahmad Ishaq Jahangir, Additional Director General FIA, Syed Hashmat Kamal, Director NCCIA, Lahore, Syed Shahid Hassan Director Cyber Crime Wing, Aisha Agha Khan, Addl. Director CCW FIA, Muhammad Sarfraz Ch. Additional Director (Operation) NCCIA, Farrukh Baig, Addl. Director CCW FIA, Rana Ijaz Khalil AD(Legal) NCCIA and Aqib Ali Khan, Inspector FIA. Mr. Muhammad Amjad Pervaiz, Advocate General Punjab assisted by Mr. Ghulam Sarwar Nahang, Additional Advocate General, M/s Shahid Nawab Cheema, Rana Umair Abrar Khan, Ahsan Rasool Chattha, Ijaz Ahmad Basra, Khurram Shehzad Chughtai, M. Farrukh Khan and Aurangzaib, Assistant Advocates General with Umar Sheraz Chattha, Director General Excise & Taxation, Shahzad Sultan Addl. I.G., Ali Nasir Rizvi, DIG (Operations), Awais Malik DIG (Legal), Zeeshan Asghar DIG (Investigation), Dr.

	Athar Waheed, DIG/Chief Traffic Officer, (CTO), Lahore, Imran Kishwar, DIG(Investigation), Ms. Ammara Athar SSP, Zahid Nawaz Marwat, AIG (Operation), CPO, Punjab, Abadat Nisar DPO, Essa Khan DPO, Tariq Mehmood AIG, Saleem Chughtai, AIG-Legal, Muhammad Mansoor SP (Traffic HQRs), Shazad Khan SP Traffic, Ikhtlaq SP, Iqbal Town, Lahore, Saleem Chughtai S.P, Mian Tanveer Amjad DSP (Legal), Afzal Dogar DSP, Khurram Shabbir DSP (Legal), Shahid Watto DSP (Legal), Sabtain DSP (Legal), Javed DSP(Legal), Qadeer Ahmad DSP (Legal), Zahid Shah DSP AVLS, Dr. Zulfiqar SHO, Muhammad Ibraheem IP, Taimoor SHO P/S Sanda, Naeem SI, Akbar SI and Wasim Abbas Bhatti, Incharge Legal, CTO, Lahore. Syed Farhad Ali Shah, Prosecutor General Punjab assisted by M/s Hafiz Asghar Ali, Muhammad Moeen Ali, Mr. Abdul Rauf Wattoo, Ahmad Saeed, Muhammad Arshad Ali Farooqi, Salman Akbar Chatha, Dr. Usman Iqbal, Mr. Sarfraz Ahmad Khichi, Deputy Prosecutors General and Mr. Muntazir Mehdi Bukhari, ADPP.
Respondents by:	M/s Syed Shahab Qutab, Rabia Hassan, Ummara Mustafa and Anas Irtaza Awan, Advocates for PEMRA with Ikram Barkat, Director General (Operations) PEMRA, Sheikh Shibzad Ahmad, Director Legal, PEMRA, Punjab, Umar Khatab, Deputy Director Legal PEMRA, Ms. Kanwal Dar, Law Officer. M/s Muhammad Afzal Khan and M. Abubakar Attiq Sheikh Advocates along with Ahmad Shamim Peerzada Director General (Web Analysis) PTA, and Muhammad Farooq Director (Web Analysis) PTA. Mr. Muhammad Jamil Ashraf Chohan, Advocate for Regional Union of Journalist with Muhammad Ashfaq, President Courts Journalist Association, Malik Muhammad Ashraf, Reporter City 42, Munir Bajwa and Abdul Haq, Press Reporters. Mr. Kamran Bashir Mughal Advocate/Vice Chairman, Punjab Bar Council, Mr. Asad Manzoor Butt Advocate, President Lahore High Court Bar Association, Mr. Munir Hussain Bhatti Advocate, President Lahore Bar Association, Mr. Qadir Bakhsh Advocate,

	General Secretary LHCBA, Falak Naz Gill Advocate, Finance Secretary LHCBA and Rana Masood Akhtar, Advocate.
Amici Curiae:	M/s Muhammad Ahmed Qayyum, Amad Tahir Ch, Sahar Zareen Bandial, Mr. Ahmad Pansota, Barrister Hamza Shehram Sarwar, Dr. Zahid Farooq, Advocates assisted by M/s Asad Zaman Tarar, & Faraan Ahmad Cheema, Advocates. Mr. Kamran Adil, Deputy Inspector General of Police (Procurement) Punjab.

ALI ZIA BAJWA, J. :- This constitutional petition, instituted under Article 199 of The Constitution of the Islamic Republic of Pakistan, 1973 (for brevity, *‘the Constitution’*) as Public Interest Litigation (PIL), raises a grave concern over the humiliation, exposure, and self-incrimination of under-custody accused persons through the recording and dissemination of their confessional interviews by media (*The term ‘media’ herein refers to print media, electronic media and social media platforms*), resulting in a serious violation of their dignity and fundamental rights.

2. The reports submitted by the Police, Excise and Taxation Department, Federal Investigation Agency (FIA), Pakistan Electronic Media Regulatory Authority (PEMRA), and Pakistan Telecommunication Authority (PTA) unequivocally demonstrate that these institutions are fully aware of their statutory responsibilities in curbing the practice of allowing media interviews, interrogations or exposure of individuals who are either in custody or under scrutiny by law enforcement personnel. These reports reflect a shared institutional commitment to protect the dignity of individuals and preserve the sanctity of ongoing investigations by preventing any media engagement that could compromise legal proceedings or violate fundamental rights. The

Advocate General, Punjab, and Prosecutor General, Punjab, have consistently maintained the position that conducting interviews of accused persons and their exposure to media while in custody not only infringes upon their inherent dignity and right to fair trial but also adversely affects the prosecution's case in a significant number of instances. Such practice, therefore, is not only legally and ethically questionable but also poses a serious threat to the integrity of criminal justice system.

3. The dignity of a person, declared inviolable, is not surrendered at the gates of a police station. An arrest, however lawful, does not strip the accused of his fundamental rights. Neither the cloak of custody nor the zeal of investigation can justify humiliation, public parading, or compelled confessions. Justice lies not in spectacle, but in a fair trial. A coerced or publicized confession is not justice but persecution. Any practice that parades the accused or compels self-incrimination under the glare of cameras impairs human dignity and undermines the very foundation upon which the criminal justice system rests.

4. The Constitution brings together many important fundamental rights to promote justice, fairness, and the dignity of every citizen. These rights are closely connected and work together to make sure that every citizen is treated with respect and according to the law. Among these, the right to be treated within the bounds of the law, as guaranteed under Article 4 of the Constitution, stands as a cardinal guarantee, safeguarding every individual against arbitrary or unlawful treatment at the hands of State authorities. When interpreted in conjunction with Articles 9 and 14, which safeguard the rights to life, liberty, and human dignity, Article 10-A, which guarantees the right to a fair trial, and Article 13, which protects against self-incrimination, an integrated and persuasive constitutional arrangement becomes evident, whereby every

individual, whether an under custody accused or a free citizen, is entitled to be treated as per law, with fairness, and with full respect for their inherent dignity. These provisions, read together, establish that the right to life is not confined to mere existence but extends to living a life of dignity, free from humiliation, inhuman treatment, or arbitrary intrusion.

5. These fundamental rights place a constitutional duty upon the State and its functionaries to uphold and safeguard the inherent dignity, right to privacy, and other inviolable protections guaranteed to every individual. This obligation extends equally to those in custody or facing criminal charges, ensuring that their legal status does not diminish the respect and care owed to them under the Constitution. The obligation of the state to safeguard human dignity serves as the lynchpin of constitutional order, forming the very foundation upon which all fundamental rights are anchored. The right to dignity is not merely a standalone entitlement, it functions as a moral and legal compass, guiding the conduct of both individuals and state functionaries in every sphere of action.¹

6. Interviews of the accused conducted during custody squarely constitute a form of media trial. A media trial refers to a situation where the media, through persistent reporting, interviews of the accused, speculative commentary, sensationalized coverage, or disclosure of investigation material, creates a public perception regarding the guilt or innocence of an accused even before the competent court adjudicates the matter. Such reporting, often accompanied by prejudicial statements and panel discussions, shapes public opinion in a manner that weakens the presumption of innocence and prejudices the fair administration of justice. As a result, when a judge delivers a verdict that contradicts this preconceived perception, it may lead the public to question the

¹ Jawwad S. Khawaja and others vs. Federation of Pakistan and others – PLD 2024 SC 337

integrity of the judicial system itself. The due process of determining guilt based solely on legally admissible evidence is not always familiar to those without legal knowledge. Laypersons are often more persuaded by the simplified and sometimes sensational narrative presented by the media, regardless of its accuracy or legal relevance. This loss of confidence in the criminal justice system becomes even more pronounced when it is not just the judgment, but the judge personally, who is subjected to criticism by the general public. In such cases, trial by media does more than prejudice the right of an accused to a fair trial, as it dents the credibility of the entire criminal justice system. There have been several instances where the media, exceeding its authorized mandate, has pre-empted judicial proceedings by portraying and declaring an accused as guilty, even before the competent court has rendered its judgment, thereby encroaching upon the fundamental right to a fair trial. It was ruled in the *Sunday Times Case*² that ‘Again, it cannot be excluded that the public’s becoming accustomed to the regular spectacle of pseudo-trials in the news media in the long run have nefarious consequences for the acceptance of the Courts as the proper forum for the settlement of legal disputes’.

7. It is imperative that the media recognize its responsibility to society and exercise voluntary restraint, drawing a clear line that must not be crossed. It must refrain from encroaching upon the exclusive domain of the judiciary or investigative authorities. Engaging in a ‘trial by media’ not only risks throwing a spanner in the works of due process but also seriously weakens the dignity and privacy of the individuals involved and encroaches upon the right to have a fair trial. In *Shahid Ali vs. State*³, the Supreme Court of Pakistan categorically deprecated the conduct of exposing accused

² Sunday Times vs. United Kingdom, (1979) 2 EHRR 245.

³ Shahid Ali vs. The State - Criminal Petition No.53-K of 2021

persons to the media and allowing their interviews, especially containing confessions. The apex Court held that such actions violate several fundamental rights, including the right to a fair trial, the presumption of innocence, the right against self-incrimination, the right to privacy, and the right to dignity. It has further been ruled that public exposure through media compromises the reputation and private life of the accused and adversely affects the lives and dignity of their family members. It has been observed that an investigating officer or any person in authority shall be held liable for misconduct if an accused, while in custody, is exposed to the media in any form, or if media access is granted for conducting an interview. The Supreme Court also urged the regulatory authorities to develop and enforce Standard Operating Procedures (SOPs) to safeguard the rights of all parties involved in criminal investigations.

8. The case at hand also requires a careful balancing of conflicting constitutional rights, on one hand, the right of the media to freedom of speech and expression under Article 19, and on the other, the fundamental rights of an accused, including the right to a fair trial under Article 10-A, protection against self-incrimination under Article 13, and the right to dignity and personal integrity under Article 14 of the Constitution of Pakistan. When fundamental rights appear to conflict, the Court must carefully balance them, preserving the core of each without allowing one to eclipse the other. This principle is well-rooted in our constitutional jurisprudence. The limitation of constitutional rights, when pursued for a purpose that is reasonable and necessary in a democratic society, calls for a careful balancing of competing rights and interests, ultimately assessed through the lens of proportionality.⁴ In his book Proportionality: Constitutional Rights and Their

⁴ D.G. Khan Cement Company Ltd. through Chief Financial Officer vs. Federation Of Pakistan through Secretary Ministry of Law and 3 others – PLD 2013 LHR 693

Limitations, Professor Aharon Barak explains that proportionality is a structured legal method used to evaluate limitations on constitutional rights. It consists of four elements. First, the restriction must pursue a legitimate aim. Second, there must be a rational connection between the restriction and that aim. Third, the restriction must be the least restrictive means available. Finally, the benefit of the restriction must be balanced against the harm it causes to the constitutional right, a stage known as proportionality *stricto sensu*. The doctrine of balancing is a judicial method used to resolve conflicts between fundamental rights. It acknowledges that no right is absolute and seeks to harmonize competing rights by ensuring that neither is unjustifiably compromised, preserving the core of each as much as possible. Thus, where media conduct reaches the threshold of posing a substantial risk to the fundamental rights of an accused, as enshrined under Articles 4, 9, 10-A, 13, and 14 of the Constitution, it can effectively trample upon the very core of these constitutional guarantees. In such circumstances, regulatory restraint becomes not only necessary but imperative.⁵ The principle of proportionality requires that the right to freedom of expression under Article 19 must yield to the higher constitutional imperatives of a fair trial, presumption of innocence, protection against self-incrimination, and the preservation of human dignity, particularly when these rights are in direct and irreconcilable conflict.⁶ The right to freedom of speech, though fundamental, is not absolute and may be lawfully regulated where its exercise conflicts with the rights of other individuals or with overriding societal interests.⁷

9. In the event of a conflict between the right of the media to freedom of speech and expression under Article 19 of the

⁵ Suo Motu Case No.28 Of 2018 – PLD 2019 SC 1

⁶ Dagenais vs. Canadian Broadcasting Corp., [1994] 3 SCR 835 (Supreme Court of Canada) & Sahara India Real Estate Corp.Ltd.& Ors vs. Securities & Exch.Board Of India & Anr – AIR 2012 SC 3829

⁷ Pakistan Broadcasters Association and others vs. Pakistan Electronic Media Regulatory Authority and others – PLD 2016 SC 692

Constitution, and the rights of an individual to dignity and reputation under Article 14, the right to a fair trial under Article 10-A, and protection against self-incrimination under Article 13, the former right must be regarded as subject to the latter rights. The freedom guaranteed under Article 19 is not absolute. It is circumscribed not only by other fundamental rights but also by the constitutional ideals, values, principles, and duties that are equally binding upon the media. Consequently, the right under Article 19 must give way to the rights guaranteed to individuals under Articles 10-A, 13, and 14 of the Constitution.

10. The core principle that emerges from the foregoing discussion is that, while the media is vested with legal and constitutional rights to report accurately on pending criminal trials and ongoing investigations, this freedom is not absolute. It does not extend to false, misleading, defamatory, or unprofessional reporting that compromises the right to a fair trial or violates the dignity, reputation, or privacy of the accused or the victim. Such conduct lies beyond the ambit of the freedom of the press guaranteed under Article 19 of the Constitution and may give rise to legal consequences.

11. The term “under custody accused” generally refers to an individual who has been formally detained or arrested by a law enforcement agency and is under their control, through physical confinement and legal restraint. However, for the purpose of the present case, this term is to be stretched to also include individuals who are temporarily halted or stopped at the roadside by law enforcement personnel, such as during routine security checks, verification of documents, or random inspections. Even if such individuals have not been formally arrested, the mere restraint on their liberty and subjection to official authority brings them within

the protective ambit of the law, aimed at safeguarding their dignity, privacy, and integrity.

12. In light of the above discussion, the Court finds it necessary to issue clear directions to all relevant authorities to ensure the protection of fundamental rights. This includes preserving the dignity of individuals, guaranteeing the right to a fair trial, safeguarding against self-incrimination, and preventing any form of media trial that could influence or prejudice ongoing legal proceedings. The following directions are intended to reinforce adherence to constitutional mandates and uphold the integrity of the judicial process.

- I. No law enforcement agency shall permit or facilitate media interviews, especially involving confessional statements of an under-custody accused, as such exposure gravely tarnishes and compromises their dignity, self-respect, and future course of life. It constitutes a clear violation of fundamental rights and invites unwarranted public prejudice, declining the very essence of fair trial and due process.
- II. Any violation in this regard shall constitute misconduct, and the officer found responsible shall be proceeded against in accordance with the relevant law. The heads of investigating agencies shall bear responsibility for ensuring strict compliance and shall not disregard or condone any act of misconduct committed by their subordinates.
- III. It is high time that the role of media be effectively regulated by the competent regulatory authorities to ensure that its unchecked conduct neither transgresses the limits of law nor encroaches upon the fundamental rights, dignity, and liberties of citizens.

IV. The humiliation of citizens at pickets and checkpoints established by law enforcement agencies, through their exposure to the media for showcasing performance, stands strongly deprecated. Although law enforcement agencies remain empowered to take action against individuals found involved in violation of the law, any attempt to secure media attention at the cost of the dignity, respect, or privacy of citizens shall not be permitted.

13. While the desire for fame may not, in itself, be objectionable, it becomes legally and morally indefensible when achieved through the infringement of the fundamental rights or lawful interests of others. With these words, this petition stands **allowed** in the terms set forth above.

(ALI ZIA BAJWA)
Judge

The order was pronounced and dictated on 10.09.2025 and after completion, it was signed on 03.10.2025

Judge

Approved for Reporting

Judge

*Athar